

SANCTIONING PROCEDURE RESOLUTION

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A., on behalf and representation of Mr. B.B.B. (hereinafter, the claimant), filed a complaint with the Spanish Agency for Data Protection on February 21, 2022. The complaint is directed against BANCO DE SABADELL, S.A., with NIF A08000143 (hereinafter, the respondent). The reasons for the complaint are as follows:

He states that the respondent charged his parents abusive fees for two checks, and as a result of what happened, his sister (daughter of the affected parties) contacted the branch manager by phone, who sent her, to her email address, the receipts corresponding to the disputed fees, without the consent of the account holders, which included personal data of his father: name and surname, account number, as well as the value date of the debit, reason for the return, etc.

Along with the complaint, he provides a copy of the email sent on March 25, 2021, by the branch manager addressed to the daughter of the affected parties (account holders), which states the following: "Good morning, XXXXX, I am attaching the discussed documents."

He also provides a copy of the checks.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

The forwarding, which was carried out by electronic notification, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on March 24, 2022, as stated in the certificate in the file.

In response to the request dated April 20, 2022, for an extension of the one-month period granted for the analysis of the complaint submitted, on April 26, 2022, it was agreed to extend it for a maximum of 10 working days.

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On May 4, 2022, this Agency received a written response in which, in summary, the respondent states that the present complaint is directly related to three previous complaints directed by the claimant to the Customer Service of Banco Sabadell, S.A. and to the Customer Defender, in which the interested party requested the refund of fees applied due to the return of two checks deposited in their account. It states that the interested parties are elderly individuals who do not use the digital channels that Banco de Sabadell S.A. makes available to its customers and also lack email accounts. In fact, the present complaint is filed by their son.

It states that on the day of the claimed events, March 25, 2021, the interested party went in person to the office along with his daughter, Ms. C.C.C., to claim for the first time the refund fee for the mentioned bank checks. Verbally, the interested party and his wife, account holders, authorized that their daughter, Ms. C.C.C., on their behalf, be provided by Banco de Sabadell with all the information/documentation that could be useful for claiming against the issuing bank of the checks, avoiding the need to return to the office.

Only for this reason, Banco de Sabadell S.A. provided this information to Ms. C.C.C. as a representative of her parents, and not as a third party unrelated to the facts. That is, Banco Sabadell, S.A., instructed and following the mandate of its clients, provided the financial information of its clients to their daughter, who appeared together with her parents and holders of the data and financial

information, in person at the office.

It adds that the documentation provided to the representative corresponds to the two bank debit receipts of the checks previously deposited and subsequently returned. From this, one can observe the check numbers, their amounts, the entry and credit dates, as well as the reasons for return and fees generated by this last fact. Information previously requested and authorized for delivery by the interested party to the email address of their daughter to proceed with the claim against the entity that returned the funds, number 0019 Deutsche Bank. The clients and interested parties instructed the Bank to send the information related to the mentioned operation to the email address they provided. It states that Banco Sabadell, S.A. did not act independently and autonomously without following the instructions of its clients at any time.

THIRD: On May 23, 2022, it was communicated that the complaint has been admitted for processing as three months have passed since it was received by the AEPD.

FOURTH: On June 2, 2022, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to file the complaint. The resolution was

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notified to the claimant on June 2, 2022, as evidenced in the file.

FIFTH: On July 2, 2022, the claimant filed an optional appeal for reconsideration through the AEPD Electronic Registry, against the resolution issued in file EXP202203578, in which, in summary, they express their disagreement with the contested resolution, alleging that it is not true that their parents, whom they represent, do not know how to handle the digital channels of banks, even providing an email address of their mother to which the respondent has sent information on some occasions. They add that it has not been proven that their parents granted consent for the transmission of information containing personal data to the person to whom it was sent, and that the verbal mandate reported by the respondent for the transmission of the information via email cannot be deemed valid.

SIXTH: On January 16, 2023, the appeal filed was sent to the respondent in accordance with the provisions of Article 118.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) for the purpose of allowing them to submit allegations and present the documents and justifications they deemed appropriate, which was verified by a response letter dated January 27, 2023, in which, basically, the same allegations presented throughout the procedure were reiterated.

SEVENTH: On April 10, 2023, the Director of the Spanish Agency for Data Protection resolved to uphold the appeal for reconsideration filed against the resolution issued on June 2, 2022, which ordered the filing of the complaint related to BANCO DE SABADELL, S.A., so that the processing of the complaint filed may continue in accordance with the provisions of Article 65 of the LOPDGDD.

EIGHTH: According to the Annual Report of 2022 of Banco Sabadell (page 702), the entity's business volume in 2022 was 5,180 million.

NINTH: On March 12, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 5.1.f) of the GDPR, classified in Article 83.5 of the GDPR.

The initiation agreement was sent, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), via electronic notification, being received on March 13, 2024, as stated in the certificate in the file.

TENTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which, in summary, they

deny the facts and state that the

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Complainants B.B.B. and his wife are elderly individuals who do not use remote banking services, despite having the option to do so. Their children are A.A.A. (authorized according to a document with handwritten signature from the parents to file the second complaint with BS and the Data Protection Agency) and C.C.C. (Personal Banking and Corporate Manager at Bancofar, manager of the first complaint with BS, recipient of commercial information via email regarding the parents' investments).

It is stated that on March 22, 2021, Banco Sabadell legitimately owes its clients B.B.B. and Mrs. D.D.D. certain fees related to operations concerning checks returned by another financial entity, Deutsche Bank. On March 25, 2021, according to statements made by the employee who assisted them, Ms. E.E.E., clients B.B.B. and D.D.D. visited the office to obtain information regarding the operations and the collection of the fees incurred due to the returned checks.

The emails indicating that the clients were accompanied and advised by their daughter were sent even before these clients filed a complaint with the Customer Advocate regarding an alleged breach of the duty of confidentiality, which did not occur until November 2021, thus there is no doubt about the veracity of the facts stated in the emails.

In the words of the former employee (now retired), Ms. E.E.E.:

"The clients came to the office to speak with us. We informed them of the fee for the return, and we agreed that they would go to the other entity to see what had happened. From what they told us that same morning, Deutsche made an error and did not cancel the deposits, so there was no balance in the account. They also did not call B.B.B. when the charges arrived, and they returned the two checks without carrying out any other operations. They also did not want to take responsibility for the fees generated. We had several conversations with the clients and with one daughter. B.B.B. wanted to bring these €200,000 to our entity but to leave them in a checking account."

Similarly, in response to the request for information regarding the handling of the complaint with the Customer Service of Banco Sabadell, on October 22, 2021, Ms. E.E.E., former employee of the entity, states:

"The clients B.B.B. and D.D.D., the parents, came to the office on March 24, as soon as we informed them of what had happened. B.B.B. managed all the issues, but during those days, the mother D.D.D. spoke to me about her health situation and that this matter was going to overwhelm her. They provided me with the details of their daughter C.C.C. They mentioned that she, who works at another entity, would take care of everything. They asked me to please send the documents regarding the return of the checks to the email they provided, so that she could handle matters with Deutsche that same day (the parents do not use the internet, and she was working)."

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The first claim (from July 2021) was submitted by

C.C.C.

on behalf of her parents at office 0663.

The parents were away from Madrid all summer, and when they returned, they could not locate the bank's response to their claim.

On September 17, C.C.C. contacted office XXXX again (where she submitted the claim) to request the bank's response.

I spoke with her again and indicated that her mother could come to our office so that we could provide her with a copy of the response. And that is what she did.

The clients' frustration lies in the bank's response to their claim, and they have entrusted their two children with the actions they are taking. Both are managing on their behalf."

Attached as document 1 and 1 bis are emails sent by Ms. E.E.E. to the Customer Service, informing about what happened with the clients' claim. The first dated July 21, 2021, and the second on October 22, 2021.

It is stated that it was following the clients' and their daughter's appearance at the office and the conversation with the manager from Banco Sabadell that the email address of the clients' daughter, C.C.C., who is also a banking employee, was provided, and they were informed that she would be the one managing the operational incident with the other financial entity (Deutsche Bank).

And not only that, but she had already managed, just one day prior, the commercial information that could be of interest to her parents regarding the use of their funds - attached as document 2, an email sending commercial brochures to the daughter of the current claimants - which proves her direct involvement in managing her parents' banking operations, which seems reasonable given her employment in banking. This is the case because the day before the visit to the office, and in light of the arrival of the funds that were later rejected by the other financial entity, the clients requested Banco Sabadell to send to their daughter, C.C.C., at the same professional email address of the entity where she works, information about possible investments in which to utilize the amounts that would be credited. And reference is made to document 2 attached, the email sent at the clients' request to their daughter, with the commercial information of investment products for her study and advice to her parents. Thus, the clients requested the sending of this commercial information to their daughter's email, as they later requested that the receipts for the transactions where the commission charge was noted be sent to her in order to claim them from the other financial entity.

That is to say, from the very first moment the incident occurred, even before the return of the checks presented for payment, the daughter C.C.C. had the representation of her parents, as expressed by them, and they attended to their mandate for the sending of the information that generated the incident to an email address that they could not know unless they themselves had provided it.

Thus, on July 2, 2021, C.C.C., the clients' daughter and a banking employee, personally went to the office of entity no. XXXX and before the employee Ms. F.F.F., presented the first written claim regarding the collection of the commissions that are the

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true reason for this complaint. (attached document no. 3). As can be observed, it is presented in person at the office (it bears the entry stamp), and the pre-signature of the client D.D.D. has a different handwriting from the signature that was later incorporated by its holder.

This claim was sent from the office XXXX (XXXX) to the managing office of our clients to the employee E.E.E. (...).

Subsequently, on September 17, 2021, the employee Ms. F.F.F. (office XXXX) communicates with the employee Ms. E.E.E. (office XXXX), informing her of the call from C.C.C. regarding the claim submitted in person on July 2, 2021, and leaving her personal phone number to inform her of the details of the resolution. They attach a list of communications evidencing what has been stated as attached document no. 4.

As can be observed from the documentation provided, the commercial information regarding future investments, the information related to the incident of the returned checks, the submission of the first claim related to said incident, and the follow-up of this, is carried out jointly among the account holders, B.B.B. (currently 84 years old), F.F.F. (currently 77 years old), and their daughter C.C.C.

It is only after the operational and commercial resolution of the incident regarding the collection of commissions, with the denial of the refund, that the now authorized person intervenes to submit the

claim to the Customer Service of Banco Sabadell, the Customer Advocate of Banco Sabadell, and the Spanish Agency for Data Protection, Mr. A.A.A.

And this is so because once Banco Sabadell maintains its refusal to refund the legitimately charged commissions, the family opts to proceed to file the complaint regarding data protection concerning the email addressed to C.C.C. at the request of her parents to our former employee, E.E.E. A good example of what is stated here are the different forwards of the discussed email (which was received on March 25, 2021) in which C.C.C. herself forwards it to her personal email address and subsequently to her brother A.A.A.'s personal email, in September 2021, six months after having received it. They attach as document no. 5 the succession of the information being sent for the purpose of having the clients' son be the one to "activate" this new pressure route against Banco Sabadell.

It is from this moment that the clients' daughter, C.C.C., "gives way" to her brother A.A.A. to exert pressure on Banco Sabadell for the refund of the commissions with the express threat of initiating a complaint before the Spanish Agency for Data Protection, which did happen and brings us to this statement of allegations. It is noteworthy that the only documents used to present the claim for the refund of the commissions against BS, the Customer Advocate, and, probably, against Deutsche Bank are the ones that the bank provided to C.C.C. No other family member has requested these documents from the bank, although all have these documents and have used them in their participation in the various claims, complaints, etc.

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In addition to these submitted documents, there are recordings of telephone conversations held by the office managers with clients that demonstrate that they relied on the direct intervention primarily of their daughter, C.C.C., for their transactions. They have records of the following conversations, for which they provide the corresponding recordings:

- Call 09/07/2018: B.B.B. tells E.E.E. that he needs to make a transfer. E.E.E. indicates that he cannot do it over the phone and that he must go to an office since he cannot do it online. The recording is attached as Document 6.
- Call 28/05/2020: B.B.B. calls to request a copy of his contract with Mediterráneo Vida y Pensiones that he cannot find. His daughter (who works at a bank) has requested it to carry out transactions. He ends the call by stating that he will go to the office to collect the copy of the contract and update the passbook with all payments. Document 7.

It indicates that B.B.B. and F.F.F. made an express and specific verbal mandate instructing Banco Sabadell to provide information regarding the return of the checks to their daughter C.C.C. for her management and claim. Banco Sabadell, following this mandate, communicated this information, which it could not refuse because it would have gone against the interests expressed by the claimants themselves.

In the spirit of collaboration with their clients in defending their interests and to claim the amount of those commissions accrued to the banking entity that returned the presented checks, it indicates that they needed this information to be sent to their daughter, through the email address that they themselves designated and communicated.

It states that the request, the mandate, conferred to Banco Sabadell by the clients for sending the information to their daughter C.C.C.'s email address is a fact stated by the individuals involved in the transactions, employees and former employees of Banco Sabadell, as well as by the necessity that the interested parties themselves provide this information for the purpose of sending the documentation since Banco Sabadell could not have knowledge of this data without it being provided by the clients themselves. This mandate was not questioned during the initial claims to customer service, but its alleged non-existence was only brought to light when neither Banco Sabadell S.A. nor the other financial entity returned the accrued commissions claimed by the complainants here today.

Based on the above, it requests that the sanctioning file be archived due to the non-existence of

responsibility, as the infringement subject to accusation has not occurred.

ELEVENTH: On June 10, 2024, a resolution proposal was made, proposing:

<< That the Director of the Spanish Agency for Data Protection proceed to ARCHIVE the present procedure against the entity BANCO DE SABADELL, S.A., C/ Jorge Juan, 6, 28001 – Madrid, with NIF A08000143, for alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR. >>

The aforementioned resolution proposal was sent, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), by electronic notification, being received on June 11, 2024, as stated in the certificate in the file.

TWELFTH: The respondent has not submitted allegations to the Resolution Proposal.

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in the present procedure,

PROVEN FACTS

FIRST: On February 21, 2022, Mr. A.A.A., on behalf and representation of Mr. B.B.B., filed a complaint with the Spanish Agency for Data Protection against BANCO DE SABADELL, S.A., with NIF A08000143, stating that the respondent had charged his parents abusive commissions for two checks, and that, as a result of what happened, his sister (daughter of the affected) contacted the branch manager by phone, and she sent him, to his email address, the corresponding receipts for the disputed commissions, without the consent of the account holders, which included personal data of his father: name and surname, account number, as well as the value date of the debit, reason for the return, etc.

SECOND: Along with the written allegations submitted on April 3, 2024, the respondent provides, as new documents to the file, a series of emails and recordings of telephone conversations held by the office managers with the clients.

THIRD: It is recorded:

Document number 1: email sent by Ms. E.E.E. to Customer Service, dated July 21, 2021, the literal transcription of which is as follows:

“Good morning;

B.B.B. and his wife F.F.F. currently maintain a current account with us with about €31,000 and a life savings insurance of about €50,000.

The last pension they received was in April 2021. As we can see, they have canceled their operations with BS.

The clients deposited two checks of €100,000 each in March at center 0182 without informing us in advance of the destination of the money.

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We contacted B.B.B. on March 24th upon verifying on March 24th that both were returned due to "Total Insufficient Funds."

The client informed us that they had sufficient balance at Deutsche Bank, due to the maturity of some deposits.

The clients came to the office to speak with us. We informed them of the return fee, and we agreed that they would go to the other entity to see what had happened.

According to what they told us that same morning, Deutsche made an error and did not cancel the deposits, so there was no balance in the account. They also did not call B.B.B. when the charges arrived, and returned both checks without carrying out any other operations.

They also did not want to take responsibility for the fees generated.

We had several conversations with the clients and with a daughter. B.B.B. wanted to bring these €200,000 to our entity but to leave them in a current account.

We explained the cost that maintaining balances in the account incurs for our entity and proposed investing in some savings-investment product, according to B.B.B.'s investor profile, and with this

premise, to review and request authorization to possibly reverse part of the fee.

The client considered it and ultimately refused.

From what we see, the client has no recourse.

The fees were charged automatically without the office's intervention and according to the rates.

Regards,

FOURTH: It is recorded:

Document 1 bis: email sent by Ms. E.E.E. to the Customer Service, dated October 22, 2021, whose literal transcription is as follows:

"Good morning;

Regarding the matter referenced, I attach all the documentation I have.

The clients B.B.B. and F.F.F., the parents, came to the office on March 24th, as soon as we informed them of what had happened.

B.B.B. was managing all the matters, but during those days, the mother F.F.F. spoke to me about her health situation (heart issues) and that this matter was going to overwhelm her.

They provided me with the details of their daughter C.C.C. They told me that she, who works at another entity, would take care of everything. They asked me to please send the documents regarding the return of the checks to the email C/ Jorge Juan, 6, 28001 – Madrid, that they provided, so that she could make arrangements with Deutsche that same day (the parents do not handle the internet, and she was working).

The first complaint was filed by C.C.C. on behalf of her parents at the XXXX office.

The parents were away from Madrid all summer, and when they returned, they could not find the bank's response to their complaint.

On September 17th, C.C.C. contacted the XXXX office again (where she left the complaint) to request the bank's response.

I spoke with her again and indicated that her mother could come to our office so that we could provide her with a copy of the response. And she did.

The clients' anger is directed at the bank's response to their complaint, and they have entrusted their two children with the actions they are taking. Both are managing on their behalf.

Regarding the comment made by A.A.A. about the renaming of the files I sent to her sister, I do not understand her complaint. My practice is to name the files with numbers to then eliminate them if they are not information I need.

Thank you and regards,"

FIFTH: It is recorded:

Document 2: email, dated March 24, 2021, in which commercial information is sent to the daughter, with the following literal transcription:

"Good morning XXXX;

I am sending you what we discussed

- Investment fund sheet Amundi 90

And the following link explaining the Amundi 90 fund

***LINK.1

Once you review it, if it seems fine, we can discuss it.

Thank you and regards,"

SIXTH: It is recorded:

Document 3: complaint letter: on July 2, 2021, C.C.C., daughter of the clients and employee of Banking, personally went to the office of entity no. XXXX and before the employee Ms. F.F.F., presented the first complaint letter, with the following literal transcription:

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"In Madrid on July 1, 2021

Subject: Commission for Returned Checks

As the holder of the account I maintain with your institution and given the absence of response to the claim submitted via burofax last [date], I am sending AGAIN the following request for a claim regarding the charges made to my account on the day for the amount of LICO c.

As you well know, the commissions claimed in this case are contrary to what is established in the ministerial order EHA/2899/201 of October 28 and to the position of the Bank of Spain, which in its article 3 establishes that "only commissions or expenses may be charged for services requested in firm or expressly accepted by a client and always provided that they correspond to services effectively rendered or expenses incurred."

Their accrual is linked to the effective existence of claims management before the banking institution that has returned the document, and the commission must correspond to the cost of the service effectively rendered. As you will understand, a telematic management such as the return of the mentioned documents cannot imply the total amount of 00-C charged to my account.

For all of the above, I REQUEST:

That the amounts charged as commission for the return of the check for the amount charged to my account on March 2 be returned to the indicated account immediately.

Without further ado, hoping that it will not be necessary to claim before the Complaints Service of the Bank of Spain and trusting that you will comply with my requests, receive a cordial greeting.

Sincerely,"

SEVENTH: It is recorded:

Document No. 4: On September 17, 2021, employee Ms. F.F.F. (office XXXXX) communicates with employee Ms. E.E.E. (office XXXXX), informing her of the call from C.C.C. regarding the claim submitted in person on July 2, 2021, leaving her personal phone number.

"Good morning

C.C.C., daughter of Mr. B.B.B., has called, saying that she has not yet received a response to the claim from 02.07.2021.

I have arranged with her that they would call her to inform her at the phone ***PHONE.1.

Best regards."

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EIGHTH: It is recorded:

Document No. 5: C.C.C. sends the discussed email to her personal email address and subsequently to her brother A.A.A.'s personal email in September 2021, six months after having received it.

C.C.C. < ***EMAIL.1 > September 21, 2021, 11:45

To: A.A.A. < ***EMAIL.2 >

From: C.C.C.

Sent: Tuesday, September 21, 2021 11:42

To: ***EMAIL.3

Subject: RE: Documents

From: E.E.E.

Sent: Thursday, March 25, 2021 8:42

To: C.C.C.

Subject: Documents

Good morning C.C.C.;

I am attaching the discussed documents.

Regards,

NINTH: It is recorded:

Document 7: recording of a telephone conversation: B.B.B. calls to request a copy of his contract with Mediterráneo Vida y Pensiones that he cannot find and which his daughter (who works at a bank) has requested for management purposes. He ends the call indicating that he will stop by the office to collect the copy of the contract and update the passbook with all payments.

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Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations to the initiation agreement

In response to the allegations presented by the entity being complained about, the following should be noted:

Along with the written allegations submitted on April 3, 2024, the entity being complained about provides, as new documents to the file, a series of emails and recordings of telephone conversations held by the office managers with clients, which demonstrate that these clients resorted to the direct intervention mainly of their daughter, C.C.C.

Among the analyzed documentation, there are documents numbered 1 and 1 bis, which are the emails exchanged between employees of the entity who participated in the incident that is the subject of the complaint, in which it is reported that the clients were accompanied and advised by their daughter, and which are even prior to their complaint to the Client Defender regarding an alleged breach of the duty of confidentiality.

It is noteworthy that the day before the visit to the office, and in light of the arrival of the funds that were later rejected by the other financial entity, the entity being complained about sent an email (document 2) with information about possible investments in which to use the amounts that would be credited, to the daughter of the complainants, to the same professional email address of the entity where she provides services, which would evidence her direct involvement in the management of her parents' banking operations (which seems reasonable given that she is employed in banking).

Additionally, it is recorded that on July 2, 2021, the clients' daughter personally visited the office of entity no. XXXX and, before employee Ms. F.F.F., presented the first written complaint regarding the charging of commissions (attached document no. 3). That complaint was sent from office XXXX (XXXX) to the clients' managing office, to employee E.E.E. (office located in XXXX), as evidenced by the communication records attached as attached document no. 4, which corroborate the statements made.

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On the other hand, regarding the discussed email (which was received on March 25, 2021), C.C.C. herself forwarded it to her personal email address and subsequently to her brother A.A.A.'s personal

email in September 2021, six months after having received it. This succession of transmissions is attached in document no. 5.

In addition to these submitted documents, there are recordings of telephone conversations, among which the one provided as document 7 stands out, in which B.B.B. calls to request a copy of his contract with Mediterráneo Vida y Pensiones that he cannot find and which his daughter (who works at a bank) has requested for management purposes. He ends the call by indicating that he will stop by the office to collect the copy of the contract and update the account book with all payments.

The presentation of this documentation implies the provision of new indications that could involve the obtaining of the interested party's consent for the processing of the data, which leads to the existence of a reasonable doubt regarding the obtaining of consent despite the repeated statements of the complainant asserting that he did not give his consent for the processing of the data that led to the initiation agreement, which would negate the judgment of subjective reproach as a subjective element for the imposition of administrative sanctions.

The confirmation of this fact is deduced from the various emails in which it is reported that the clients were accompanied and advised by their daughter (which are even prior to the complaint), from the statements made by the individuals involved in the transactions, employees and former employees of Banco Sabadell, from the content of the recordings of telephone conversations held by the office managers with the clients, which show that they resorted for their management to the direct intervention mainly of their daughter, as well as from the necessity that the interested parties themselves provided their daughter's email address for the purpose of sending the documentation, since Banco Sabadell could not be aware of this information without it being provided by the clients themselves.

In this regard, the Administrative Sanctioning Law, due to its specialty, applies, with some nuances but without exceptions, the guiding principles of criminal law, resulting in the clear full validity of the principle of presumption of innocence.

As the Constitutional Court has repeatedly stated, "the presumption of innocence applies without exceptions in the sanctioning legal framework and must be respected in the imposition of any sanctions, whether criminal or administrative, since the exercise of the *ius puniendi* in its various manifestations is conditioned by Article 24.2 of the Constitution to the play of evidence and to an adversarial procedure in which the parties can defend their own positions." (Judgment No. 74/2004, of April 22, of the Second Chamber of the Constitutional Court).

In this sense, the Constitutional Court, in Judgment 76/1990, considers that the right to the presumption of innocence entails "that the sanction is based on acts or incriminating evidence of the reproached conduct; that the burden of proof corresponds to the accuser, without anyone being obliged to prove their own innocence; and that any insufficiency in the result of the evidence presented, freely evaluated by the sanctioning body, must translate into a

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"absolatory ruling."

According to this statement, Article 28.1 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector establishes as one of the principles of the sanctioning power the principle of "Responsibility," determining that: "Only individuals and legal entities, as well as, when a Law recognizes their capacity to act, groups of affected parties, unions, and entities without legal personality and independent or autonomous estates, may be sanctioned for acts constituting administrative infractions, who are responsible for the same by way of intent or negligence."

Furthermore, it should be noted what Article 53.2 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations establishes:

"In addition to the rights provided for in the previous section, in the case of administrative procedures of a sanctioning nature, the presumed responsible parties shall have the following rights: (...)

b) To the presumption of non-existence of administrative responsibility until proven otherwise."

In conclusion, the application of the principle of the presumption of innocence prevents attributing an administrative infraction when there has not been obtained and verified the existence of incriminating evidence supporting the facts that motivate this attribution.

Therefore, it must be concluded that, after analyzing the reported facts, the allegations made by the accused party, and the evidence provided in the procedure, no evidentiary elements have been established that allow attributing to the accused party a violation of Article 5.1.f) of the GDPR.

III

In light of the facts presented, it is considered appropriate to ARCHIVE the present procedure against the entity BANCO DE SABADELL, S.A., with NIF A08000143, for the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection

RESOLVES:

FIRST: TO ARCHIVE the present procedure against the entity BANCO DE SABADELL, S.A., with NIF A08000143, for the alleged infringement of Article 5.1.f) of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to BANCO DE SABADELL, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection, within one month from the day following the notification of this resolution, or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation evidencing the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered concluded.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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